



U.S. Department  
of Transportation

**Research and  
Special Programs  
Administration**

OCT 8 1999

400 Seventh Street, S.W.  
Washington, D.C. 20590

DOT-E 12262

EXPIRATION DATE: **September 30, 2001**

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Sporting Arms And Ammunition Manufacturer's Institute, Inc. (SAMMI) whose members are listed in Appendix A.  
Kennett Square, PA
2. PURPOSE AND LIMITATION:
  - a. This exemption authorizes the transportation in commerce of certain Class 1 materials together with certain compatible materials that do not meet the definition of a hazardous material specified herein. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
  - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use or other uses not associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.61(a) in that compatible non-hazardous materials may be shipped in the same outer package with certain Class 1 materials; and the marking requirements of § 172.301(c).
5. BASIS: This exemption is based on the application of the Sporting Arms and Ammunition Institute, Inc. dated March 29, 1999, submitted in accordance with § 107.105 and the public proceeding thereon.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

| Proper Shipping Name/<br>Hazardous Materials Description | Hazard<br>Class/<br>Division | Identi-<br>fication<br>Number | Packing<br>Group |
|----------------------------------------------------------|------------------------------|-------------------------------|------------------|
| Powder, smokeless                                        | 1.3C                         | UN0161                        | II               |
| Primers, cap type                                        | 1.4B                         | UN0378                        | II               |
| Primers, cap type                                        | 1.4S                         | UN0044                        | II               |
| Cartridges, small arms                                   | 1.4S                         | UN0012                        | II               |
| Cartridges, small arms, blank                            | 1.4S                         | UN0014                        | II               |
| Cartridges, power device                                 | 1.4S                         | UN0323                        | II               |

7. SAFETY CONTROL MEASURES: PACKAGING - Materials that do not meet the definition of a hazardous material such as hats, shirts, belt buckles, patches, badges, bullets, buttons, pins, printed product information and product safety booklets, leaflets, fliers, calenders and target sheets may be packaged within the specification outer packagings required for the hazardous materials listed in paragraph 6, provided they are not in direct contact with the hazardous material and are external to the inner packaging. These items must be of such a form or packaged such that they will not cause accidental initiation of the explosives articles or substances listed in paragraph 6.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this exemption who receives a package covered by this exemption may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this exemption and the HMR.

b. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

c. The marking requirements of § 173.301(c) are waived.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel, cargo-only aircraft, and passenger-carrying aircraft only when authorized by the HMR.
10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each cargo vessel or aircraft used to transport packages covered by this exemption. The shipper must furnish a copy of this exemption to the air carrier before or at the time the shipment is tendered.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
  - o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
  - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving fire, explosion or loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any

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activity undertaken under the authority of this exemption.)  
In addition, the holder(s) of this exemption must inform the  
AAHMS, in writing, of any incident involving the package and  
shipments made under the terms of this exemption.

Issued at Washington, D.C.:

OCT 8 1999



Alan I. Roberts  
Associate Administrator for  
Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous  
Materials Safety, Research and Special Programs Administration,  
Department of Transportation, Washington, D.C. 20590.  
Attention: DHM-31.

The original of this exemption is on file at the above office.  
Photo reproductions and legible reductions of this exemption are  
permitted. Any alteration of this exemption is prohibited.

Copies of exemptions may be obtained from the AAHMS, U.S.  
Department of Transportation, 400 7th Street, S.W., Washington,  
DC 20590-0001, Attention: Records Center, 202-366-5046.

Dist: FHWA, USCG, FRA, FAA  
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